

25STCV15651 25STCV15651

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-21

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Case Number: 25STCV15651 Hearing Date: September 21, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:31 PM on September 18, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 18, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This

is a Lemon Law action based on alleged defects in Plaintiffs' vehicle.

Defendant

FCA US, LLC moves for sanctions against Plaintiffs pursuant to Code Civ. Proc. § 871.26(j).

TENTATIVE RULING

Defendant FCA US, LLC's request for sanctions against Plaintiff's counsel is GRANTED in the mandatory amount of \$1,500. (Code Civ. Proc. § 871.26(j)(1).) Sanctions are to be paid to Defendant's counsel within 15 business days. (Id.)

ANALYSIS

Motion For Sanctions

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant

FCA US, LLC moves to for sanctions against Plaintiff pursuant to Code Civ. Proc. § 871.26 (j) due to Plaintiff's failure to timely serve the mandatory initial disclosures within 60 days after the filing of Defendant's responsive pleading, as required by section 871.26, subdivision (b) and failed to provide complete information or the required documents.

(b) Within 60

days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

(Code Civ. Proc. § 871.26(b).) The Court notes that the instant motion shows that rather than reducing the proliferation of discovery motions in Song-Beverly litigation, the 2024 amendments to the Song-Beverly Act simply created new fields to fight old battles. The legislative history for the bill amending the Song-Beverly Act ambitiously stated:

The expedited discovery provisions of this measure will reduce protracted discovery disputes. Discovery disputes, most notably arguments over what must be turned over to opposing parties in litigation, [are] one of the largest drivers in delays in almost every type of civil litigation. Lemon law litigation is no different. Presently, parties squabble over what maintenance records are to be disclosed, what warranty documents must be disclosed, and how depositions can be conducted. Every time one of these disputes arises, the court is forced to calendar a motion hearing and delay a potential trial. Given that lemon law cases are typically very document-heavy matters and involve a limited universe of documents, many of these discovery

disputes represent little more than unnecessary litigation tactics that only serve to delay justice.

(Assem. Com. on Judiciary, analysis on A.B. 1755 (2023-2024 Reg. Sess.) as amended August 26, 2024, p. 14.) Yet here we sit, with this being the fourth motion pursuant to section 871.26 calendared in the past five weeks.

On

August 6, 2025, Defendant filed a demurrer and motion to strike to the Complaint.

As such, Plaintiff had until Monday October 5, 2025 to serve initial disclosures and documents. On August 15, 2025, Plaintiff served initial disclosures, with no document production. (Declaration of Armando Lopez, ¶ 4; Exh. A.)

Although

Plaintiff's initial disclosure was timely, the failure to provide documents did not comply with Code Civ. Proc. § 871.26(b), (f). In the Reply, Defendant indicates that Plaintiff still has not produced all of the required documents or provided all information mandated by § 871.26(f) & (g), including information regarding collisions, aftermarket parts, or the identify of any servicing dealerships and dates when the visits occurred. Plaintiff has not demonstrated good cause for failure to provide documents specified in Code Civ. Proc. § 871.26(f). These are documents which the client should have provided to counsel as part of the intake process.

The

Court agrees with Defendant's argument in the Reply:

Section 871.26

places the disclosure obligation on the disclosing party. Nothing in the statute excuses compliance because the opposing party may independently possess similar information. If Plaintiffs' position were accepted, any disclosure obligation could be avoided simply by asserting that the opposing party already has access to the requested information. Because that is not what the Legislature enacted, the argument should be rejected.

(Reply, Page 2:18 – 22.)

Code

Civ. Proc. § 871.26(j)(1) provides:

(j) Unless the

party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter,

a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(Code Civ. Proc. § 871.26(j)(1).)

Defendant's

request for sanctions against Plaintiff's counsel is GRANTED in the mandatory amount of \$1,500. (Code Civ. Proc. § 871.26(j)(1).) Sanctions are to be paid to Defendant's counsel within 15 business days. (Id.)